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2
3 **IN THE CIRCUIT COURT FOR THE STATE OF OREGON**
4 **COUNTY OF WASHINGTON**

5 STATE OF OREGON,

6 PLAINTIFF,

7 vs.

8 ASHLE ANTOINETTE PENN,

9 DEFENDANT.

No. 25CN05790 (DA 454444)

AFFIDAVIT IN SUPPORT OF
ARREST WARRANT FOR
VIOLATION OF ORS 135.290,
CONTEMPT OF COURT

10
11 In support and substantiation of the allegations set forth in the accompanying
12 Misdemeanor Complaint, accusing the above-named defendant of the crime of ORS 162.385,
13 Giving False Information to a Peace Officer in Connection with a Citation or Warrant,
14 Telephonic Harassment, Contempt of Court, and having been first duly sworn, I depose and say
15 that the said accusatory instrument is based upon the following information, which is true, as I
16 verily believe.

17 **AFFIANT DETAILS**

18 I, David Rambin, am a Deputy Sheriff with the Washington County Sheriff's Office. I
19 have been employed full-time with this agency since 2016. I have been assigned full-time as a
20 patrol deputy since December 2016.

21 I currently hold a Basic, Intermediate, and Advanced Police certification through the
22 Oregon State Department of Public Safety, Standards and Training. I possess a Bachelor of Arts
23 degree in Interdisciplinary Studies from the University of Portland and a Master's in Business
Administration from the University of Phoenix. During my tenure at the Washington County

1 Sheriff's Office, I have received over 2,000 hours of law enforcement related training on various
2 subjects, including many hours related to the investigation various domestic and stalking crimes.

3 This affidavit is for the purpose of securing an arrest warrant. Therefore, I am including
4 only the relevant facts that I believe are necessary to establish probable cause that ORS 163.732,
5 Stalking and ORS 166.090, Telephonic Harassment has been violated. In this case, I have
6 probable cause to believe that Ashle Antoinette Penn, committed the crime of ORS 135.290
Contempt of court because of the following:

7 **NARRATIVE**

8
9 On May 12, 2025, I was contacted by the Washington County District Attorney's Office
10 and asked to determine the identity of a female who had been present at the time that Barry
11 Washington had been arrested on a warrant due to a possible violation of a release agreement.

12 I first reviewed Dep. Hayden King's report and saw that a female was listed as being at
13 the residence, 17548 N Springville Rd, Apt 9, Portland, but that she was not identified in the
14 report. I then reviewed the CAD call and saw that Ashle Penn had been identified in the call.
15 Seeing this, I contacted Dep. Brandon Mock, who had been present at the time of the call and
16 confirmed with him that Ashle had been at the call location and that he had spoken with her.

17 Hearing this, I reviewed Ashle's release agreement from when she and Barry had been
18 arrested together and saw that she was not to have contact with her co-defendant, Barry.

19 Based on this information, I developed probable cause to arrest Ashle Penn for violation
20 of a release agreement by having contact with her co-defendant, Barry Washington.

21
22 **SUSPECT DESCRIPTION**

1 I know from Ashle Penn's listing in various ID/ODL/law enforcement data bases the
2 following information about Ashle Penn:

3 Height: 5'04"

4 Weight: 130lbs

5 DOB: 02-15-1988

6 Ethnicity: Black

7 Last Known Address: 17548 NW Springville Rd, Apt 9, Portland, OR 97229

8 Phone Number: 971-888-0674

9 ///

10 **ATTEMPTS AT CONTACT**

11 Multiple deputies have attempted to contact Ashle at her last known address, for various
12 reasons, such as attempting to contact her with DHS employees and to arrest her on an additional
13 warrant. Each time, they have been unsuccessful in contacting her and it appears that she is
14 actively attempting to avoid contact with law enforcement.

15 **STATEMENT OF PROBABLE CAUSE**

16 a. Elements of Specific Crime

17 b. A person commits the crime of ORS 135.290 Punishment by contempt of court if the
18 defendant breaches any of the regulations in the release agreement imposed pursuant
19 to ORS 135.260 (Conditional Release).

20 Facts to Support Probable Cause

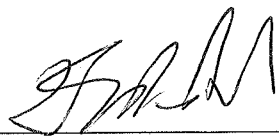
21 In this case, I have probable cause to believe that Ashle Penn violated her release
22 agreement by contacting Barry Washington in person on May 12, 2025.

23 Based on the above information, I have probable cause to believe that the crime ORS
24 135.290, Contempt of court was committed by Ashle Penn, as set forth in the accompanying
25 Misdemeanor Complaint.

PRAYER FOR RELIEF

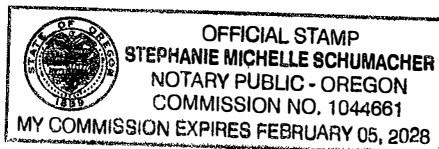
I respectfully request that a warrant of arrest be issued for the apprehension of Ashle Penn for the crime of ORS 135.290, Contempt of court.

December 29, 2025
MONTH DAY


Rambin, David DPSST 53879

SUBSCRIBED and SWORN to before me this 29 day of December 2025.


NOTARY PUBLIC



IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

June 11, 2025

ASHLE ANTOINETTE PENN
710 NW AUTUMN CREEK WAY APT L304
BEAVERTON OR 97006

Re: State of Oregon vs ASHLE ANTOINETTE PENN
Case #: 24CR49043 Offense Felony

NOTICE OF SCHEDULED COURT APPEARANCE

Scheduled Proceeding: Arraignment - Show Cause
Room: LEC1
Law Enforcement Center
215 SW Adams Avenue
Hillsboro, OR 97123
503-846-6060

Date	Time
06/23/2025	10:30 AM

Additional information:
RE: VRA

IMPORTANT NOTICE: PLEASE READ

Failure to appear at the time and place noted above may result in a warrant being issued for your arrest.

Interpreter: If you need an interpreter, you must tell the court at least **4 business days before** your appearance date. Go to www.courts.oregon.gov/ScheduleAnInterpreter to get an interpreter.

Intérprete: Si Ud. necesita un intérprete, debe notificar al tribunal por lo menos 4 días laborales antes de la fecha de su comparecencia. Para conseguir un intérprete, siga el siguiente enlace: www.courts.oregon.gov/ScheduleAnInterpreter

1 **IN THE CIRCUIT COURT OF THE STATE OF OREGON**
2 **FOR THE COUNTY OF WASHINGTON**

4 Case No.: 24CR49043

5 **STATE OF OREGON,**

6 Plaintiff,

7 v.

8 **ASHLE' ANTOINETTE PENN,**

9 Defendant.

**NOTICE OF APPEARANCE PRO SE;
NOTICE OF PRESERVATION OF
RECORD; NOTICE OF SYSTEMATIC
OBSTRUCTION OF ACCESS TO
PROCEEDINGS; AND OBJECTION
TO CHARACTERIZATION OF
DEFENDANT'S STATUS**

*Special Appearance Only;
Filed on the Papers*

13 **I NATURE AND PURPOSE OF THIS NOTICE**

14 Defendant Ashle' Antoinette Penn appears specially and pro se to establish a complete and
15 contemporaneous record on matters that have advanced, in Defendant's absence and without her
16 knowledge, in a manner inconsistent with her constitutional and statutory rights. This Notice neither
17 litigates nor waives any substantive claim. It states what the record shows, names what the record
18 requires this Court to see, and places Defendant squarely before this Court on her own terms.

19 The record of these proceedings, taken as a whole, reflects a single coherent pattern:
20 Defendant has not absented herself from this Court. She has been systematically denied access
21 to it. That distinction is not rhetorical. It is the organizing fact of this filing, and it will be the
22 organizing fact of the motions that follow.

23 This filing is a special appearance. Defendant does not submit to general jurisdiction and
24 does not waive any pending motion, jurisdictional challenge, or constitutional objection by this
25 filing.

26 **II DEFENDANT HAS BEEN PRESENT — THE RECORD CONFIRMS IT**

27 Defendant appeared at every proceeding at which she had counsel. She appeared at arraignment, at
28 hearings before the Honorable Brandon Thompson on case 24CR49043 and case 24CR27775, and

1 at the April 28, 2025 hearing at which, over her express objection stated on the record, her second
2 appointed attorney was removed from the case.

3 At the April 28, 2025 hearing, Defendant had independently prepared and filed both a
4 demurrer and a declaration because appointed counsel had represented she would file a demurrer
5 and did not. Defendant appeared. Defendant spoke. Defendant asked to preserve the record. The
6 Court told her she would not be prejudiced by the deferral of argument on those filings that day.
7 Defendant relied on that representation.

8 At timestamp 19:05 through 19:09 of that same hearing, the court clerk confirmed Defen-
9 dant's current address on the record. Defendant followed the OPDC check-in process as directed.
10 She followed every instruction this Court gave her.

11 She has attempted to participate in subsequent proceedings by every means made available
12 to her. She has been blocked at each attempt by mechanisms this Notice describes precisely.

13 **A Defendant Is Not Evading These Proceedings**

14 Deputy Rambin's December 29, 2025 affidavit in support of the arrest warrant in case 25CN05790
15 states that multiple deputies have attempted to contact Defendant at her last known address and
16 have been unsuccessful, and that it "appears that she is actively attempting to avoid contact with
17 law enforcement."

18 The docket does not support that characterization. Defendant appeared when she had
19 counsel. When she had no counsel, she was told she would not have a court date until new
20 counsel was appointed. She received no adequate notice of subsequent proceedings for the reasons
21 described in Section III below. She attempted to appear remotely when she became aware of a
22 hearing and was denied.

23 Defendant further notes that Deputy Rambin's "last known address" in the December 29,
24 2025 affidavit is 17548 NW Springville Road, Apt. 9, Portland — the address at which law
25 enforcement executed the May 10, 2025 warrant and at which Defendant was located. That is
26 not the address of a person avoiding law enforcement. That is a person's home. The record does
27 not support the characterization of evasion, and Defendant objects to it in each active case.
28

1 **III DEFENDANT DID NOT RECEIVE NOTICE — THE MECHANISM IS DOCUMENTED**

2 **A OPDC Is an Administrative Placeholder, Not Representation**

3 At the April 28, 2025 hearing, the Honorable Brandon Thompson explained at timestamps 17:28
4 through 17:50 that Defendant’s case would move to “OPDC doc” status — a queue designation
5 reflecting that no attorney had been assigned. The Court stated explicitly: “we don’t have a lawyer
6 for you right now.” Defendant was directed to call a check-in number and was told she would not
7 have another court date until a new lawyer was obtained.

8 The OPDC designation is an administrative queue. It is not an attorney-client relationship.
9 It does not constitute representation. It carries no obligation on OPDC’s part to monitor the docket,
10 attend hearings, or transmit notices to Defendant. Nevertheless, the court’s automated notice system
11 generated and routed hearing notices to OPDC in Salem as though Defendant were represented.
12 Those notices did not reach Defendant.

13 The practical consequence requires no inference: proceedings were scheduled, held, and
14 concluded on matters directly affecting Defendant’s liberty and the charges against her, and
15 Defendant received no notice of any of them.

16 **B The Address of Record Was Altered When the Contempt Case Was Filed — and That Alteration**
17 **Propagated Across All Active Cases**

18 On December 30, 2025, case 25CN05790 — the contempt action — was filed. That filing
19 introduced a stale address for Defendant into the court’s case management system: an address
20 at which Defendant has not resided for approximately ten years. Because case 25CN05790 was
21 the most recently filed case involving Defendant, the court’s system pulled that address forward
22 and applied it as Defendant’s address of record in her other active cases, including 24CR49043 and
23 24CR27775. Defendant was informed of this propagation mechanism by a court release officer.

24 The consequence was immediate and total: every notice generated in every active case after
25 December 30, 2025 was directed to an address at which Defendant does not live and has not lived
26 for approximately a decade.

27 This was not a routine clerical error. The address entered into case 25CN05790 on
28 December 30, 2025 was stale. It was entered into the most recently filed case. The system did
29 the rest. The timing is not incidental — the contempt case was filed, the stale address was entered,

1 and the notice blackout began, simultaneously, on the same date.

2 The internal contradiction that establishes the State’s actual knowledge of Defendant’s cur-
3 rent address is this: the arrest warrant in case 25CN05790 was executed at 17548 NW Springville
4 Road, Apt. 9, Portland — Defendant’s actual current residence. The State executed process at
5 Defendant’s correct address while the court system simultaneously routed notices to a different,
6 incorrect address. The State cannot simultaneously claim ignorance of Defendant’s location and
7 have executed a warrant there.

8 **C A Court Release Officer Sent Notice to the Stale Address and Asserted That Sending Constituted Delivery**
9 Christina Stiefer, Pretrial/Verification/Set Aside/Traffic Supervisor for Washington County Circuit
10 Court, transmitted a notice to Defendant at the stale address of record. When Defendant raised the
11 address problem, the officer maintained that the notice had been properly sent — treating the act of
12 transmission to a wrong address as equivalent to delivery. Defendant was instructed to surrender
13 herself notwithstanding the defective notice.

14 Proof of sending is not proof of receipt. An address that appears in the court system as a
15 result of a filing-date propagation mechanism does not become Defendant’s address by virtue of its
16 appearance there. Defendant preserves all rights arising from this defective notice, including the
17 right to challenge the legal sufficiency of notice of any proceeding held after December 30, 2025.

18 **D Defendant’s Motion to Appear Remotely Was Denied; Her Absence Was Then Recorded as Failure to Appear**

19 When Defendant learned that proceedings were being held in case 24CR27775 in connection with
20 the court’s sua sponte consideration of mandatory dismissal under *State v. Roberts*, 374 Or. 821
21 (2026), she filed a motion to appear remotely pursuant to Presiding Judge Order No. 343 (Remote
22 Proceedings), signed February 15, 2024, by the Honorable Rebecca D. Guptill, Presiding Judge.

23 That motion was denied. Defendant was then noted as having failed to appear at the
24 proceeding from which she had been excluded by the denial of the only mechanism by which
25 she sought to attend.

26 The sequence is this: Defendant sought access. Access was denied. The denial was then
27 converted into a procedural finding against Defendant. This Court is entitled to know that the
28 failure-to-appear notation followed directly from a denial of the means to appear.

1 **IV ADVERSE PROCEEDINGS WERE CONDUCTED AFTER THE COURT REPRESENTED THAT**
2 **PROCEEDINGS WERE SUSPENDED**

3 At the April 28, 2025 hearing, at timestamp 18:18, the Honorable Brandon Thompson stated on
4 the record: “*it cancels all future hearing dates at this time.*” The Court further represented that
5 Defendant would not have another court date until new counsel was appointed. That representation
6 was unqualified.

7 Defendant relied on it entirely. She had no basis to monitor for proceedings she had been
8 told would not occur.

9 Following that representation, and while Defendant had no counsel and no adequate notice,
10 the following occurred:

- 11 1. The court, apparently on its own, identified that the threshold for mandatory dismissal under
12 *State v. Roberts*, 374 Or. 821 (2026), had been crossed in case 24CR27775. Defendant
13 received no notice of this development. The first Defendant learned of any dismissal
14 proceeding was upon learning that the State had filed an objection to it.
- 15 2. The State’s objection rested on the assertion that Defendant had “fired” two lawyers. That
16 assertion is directly refuted by the State’s own conduct. At the hearing on the withdrawal
17 of Defendant’s first appointed counsel, the State initially opposed that withdrawal on the
18 mistaken belief that Defendant had sought it — and withdrew its opposition only upon
19 being corrected on the record. An entity cannot assert that a defendant fired her lawyer
20 while simultaneously having opposed that lawyer’s departure. The State’s own on-record
21 conduct at the Sidman withdrawal hearing is a judicial admission that Defendant did not
22 cause counsel’s first withdrawal. The withdrawal of Anna Lasher arose from a mandatory
23 conflict of interest under RPC 1.7, attributed by the Court to counsel’s circumstances, not
24 Defendant’s conduct — stated on the record, April 28, 2025.
- 25 3. A hearing was held on the State’s objection to the court’s sua sponte *Roberts* consideration.
26 Defendant was not present. Her remote appearance motion had been denied. A failure-to-
27 appear notation followed.
28

1 4. Show cause proceedings were initiated and an arrest warrant was issued in case 25CN05790,
2 based on a warrant affidavit whose predicate Defendant contests as void on its face. Defen-
3 dant received no adequate notice of those proceedings.

4 Each of these proceedings was adverse to Defendant's interests. Each was conducted during
5 a judicially-declared suspension of proceedings. Each proceeded without the counsel the Court had
6 represented would be obtained before further proceedings occurred. Defendant's absence from each
7 was not voluntary, was not a waiver of any right, and was the direct product of the circumstances
8 described in this Notice.

9 **V THE COURT DENIED MOTIONS THE STATE DID NOT OPPOSE — THEN LEFT A DEMURRER**
10 **UNDECIDED FOR FOURTEEN MONTHS**

11 The April 28, 2025 hearing was convened as an omnibus hearing. Before it was converted to a
12 withdrawal hearing, prior counsel Anna Lasher's motion to dismiss and motion to suppress were
13 before the Court. The State had not filed any written opposition to either motion. Approximately
14 two months after the April 28, 2025 hearing, this Court denied both motions — without written
15 findings, without a hearing at which Defendant could be heard, and without any opposition from
16 the State having ever been filed.

17 A court that denies motions the opposing party has not contested, without findings, without
18 hearing, deprives the moving party of a meaningful ruling. Defendant preserves the denial of those
19 uncontested motions as error.

20 Separately, Defendant's demurrer — filed and submitted to this Court on April 28, 2025 —
21 has not been decided. It has been pending for more than fourteen months. ORS 1.050 requires every
22 court to dispose of submitted matters within three months. That period expired on approximately
23 July 28, 2025. Eleven months have passed since that date without a ruling, an extension order, or
24 an explanation.

25 Under *State v. Sanders*, 280 Or. 685 (1977), a demurrer must be resolved before any
26 other pretrial proceedings are conducted. Pretrial proceedings — including the adverse hearings
27 described in Section IV — have been conducted in this case while the demurrer remained, and
28 remains, undecided. Defendant preserves all rights arising from that sequence.

1 Defendant demands a ruling on the demurrer within thirty days of this Notice.

2 **VI THE RECORD DOCUMENTS EXTRA-JUDICIAL COMMUNICATIONS THAT INITIATED**
3 **ADVERSE PROCEEDINGS AGAINST DEFENDANT WITHOUT HER KNOWLEDGE**

4 The record contains documentary evidence — in the form of a government email chain — estab-
5 lishing the following sequence:

6 On June 10, 2025, at 12:20 PM, Christina Stiefer, Pretrial/Verification/Set Aside/Traffic
7 Supervisor for Washington County Circuit Court, sent an email to Sheila Clark, P&P Services
8 Supervisor at Washington County Community Justice. That email states, in relevant part:

9 “Judge Thompson has forwarded an email to the Pretrial Release Office that you had
10 sent regarding Ashle Penn. I understand that you have knowledge that Ms. Penn has
11 been having contact with Mr. Barry Washington who is co-defendant in her criminal
12 case # 24CR49043. Her release conditions are to not have any contact with Mr.
13 Washington. Would you be willing to send our office an email sharing with us your
14 knowledge of the defendant’s contact with her co-defendant? Judge has requested
15 that we prepare a VRA Show Cause for this violation and I will need a little more
16 information to support the affidavit.”

17 The email chain establishes the following facts, each of which is documented:

- 18 1. Sheila Clark of Washington County Community Justice — a parole and probation services
19 supervisor whose agency supervised the person identified as Defendant’s co-defendant —
20 sent an email to the Honorable Brandon Thompson regarding Defendant.
- 21 2. Judge Thompson received that email. He forwarded it to the Washington County Circuit
22 Court Pretrial Release Office. He directed that office to prepare a VRA Show Cause
23 proceeding against Defendant.
- 24 3. These communications occurred outside the courtroom, outside the record, and without
25 notice to Defendant or any opportunity for her to be heard.
- 26 4. The same day — June 10, 2025 — Stiefer received a responsive email from a parole and pro-
27 bation officer at Washington County Community Justice summarizing contact information
28

1 gathered through supervised jail calls placed by the co-defendant. Stiefer filed her Affidavit
2 for Violation of Release Agreement in case 24CR49043 the same day, June 10, 2025.

3 5. Circuit Court Judge C. Colburn signed the resulting order directing Defendant to appear on
4 June 23, 2025.

5 6. The notice of that June 23, 2025 hearing was directed to 710 NW Autumn Creek Way, Apt.
6 L304, Beaverton, Oregon — not Defendant’s current address — at a time when Defendant’s
7 address of record had already been altered as described in Section III above.
8

9 Defendant notes for the record that the person identified in the release agreement as a
10 co-defendant is a person in whose supervision proceedings Defendant had been an active and
11 documented advocate, asserting constitutional challenges to supervision conditions on his behalf
12 directly to the supervising agency and to oversight bodies. Washington County Community Justice
13 was aware of that advocacy. The use of information gathered through that agency’s supervision of
14 the co-defendant, transmitted to a sitting judge assigned to Defendant’s case, outside the record, to
15 initiate adverse judicial proceedings against Defendant, is a fact the documentary record establishes.
16 Defendant places it in this record and reserves all rights arising from it.

17 Or. Const. Art. I, § 10 guarantees every person a remedy by due course of law for injury
18 done to them. Canon 2, Rule 2.9 of the Oregon Code of Judicial Conduct prohibits ex parte
19 communications on pending or impending matters. A judge who receives correspondence from
20 a parole supervision agency regarding a defendant in a pending case, forwards that correspondence
21 to his own court’s administrative office, and directs the preparation of adverse proceedings against
22 that defendant — all outside the courtroom and without notice to the defendant — is not a neutral
23 arbiter of those proceedings or of any proceeding that flowed from that directive.

24 Defendant does not ask this Court to rule on this issue here. She asks that the record reflect
25 what the documents show.

26 **VII THE STIEFER AFFIDAVIT IS PREDICATED ON A VOID STATUTORY FOUNDATION**

27 The Affidavit for Violation of Release Agreement filed by Christina Stiefer on June 10, 2025
28 invokes ORS 135.290 as the basis for contempt. ORS 135.290 authorizes punishment by contempt

1 of court only for breach of regulations imposed pursuant to ORS 135.260 — the conditional release
2 statute.

3 Defendant's release instrument, attached to Stiefer's own affidavit as an exhibit, is a Security
4 Release Agreement executed under ORS 135.265. A security release is not a conditional release
5 under ORS 135.260. The contempt remedy under ORS 135.290 requires a conditional release
6 predicate under ORS 135.260. That predicate does not exist here. The statutory architecture of the
7 contempt charge collapses on the face of Stiefer's own attached exhibits, without reference to any
8 fact in dispute.

9 Defendant preserves this statutory void-on-its-face challenge to the contempt proceeding in
10 full.

11 **VIII REQUEST FOR JUDICIAL NOTICE**

12 Pursuant to ORS 40.060 (Oregon Rule of Evidence 201), Defendant requests that this Court take
13 judicial notice of the following facts:

- 14 1. At timestamp 18:18 of the April 28, 2025 hearing, the Honorable Brandon Thompson stated
15 on the record: *"it cancels all future hearing dates at this time."*
- 16 2. At timestamps 19:05 through 19:09 of that same hearing, the court clerk confirmed Defen-
17 dant's current address on the record.
- 18 3. The OPDC designation entered in Defendant's cases following April 28, 2025 reflects no
19 assigned attorney and no attorney-client relationship at any time material to the proceedings
20 described herein.
- 21 4. Case 25CN05790 was filed on December 30, 2025.
- 22 5. The hearing notice for the June 23, 2025 VRA show cause proceeding in case 24CR49043
23 was directed to 710 NW Autumn Creek Way, Apt. L304, Beaverton, Oregon, not Defen-
24 dant's current residential address.
- 25 6. The arrest warrant in case 25CN05790 was executed at 17548 NW Springville Road, Apt.
26 9, Portland, Oregon — Defendant's current residential address, confirmed on the record at
27
28

1 the April 28, 2025 hearing.

2 7. Defendant's demurrer was submitted to this Court on April 28, 2025 and remains undecided.

3 The three-month period prescribed by ORS 1.050 expired on approximately July 28, 2025.

4
5 8. Approximately two months after April 28, 2025, this Court denied prior counsel's motion
6 to dismiss and motion to suppress in case 24CR49043. The State had filed no written
7 opposition to either motion at the time of denial.

8 9. Presiding Judge Order No. 325 expired January 3, 2025. Presiding Judge Order No. 350
9 became effective January 31, 2025, with grand jury orientation beginning that date. No
10 Presiding Judge Order authorized a grand jury to convene on January 14, 2025, as confirmed
11 in writing by Washington County Trial Court Administrator Richard Moellmer.

12 10. Deputy Rambin's supplemental report, dated December 27, 2024, states that it was possible
13 Defendant was not the suspect in the September 17, 2024 incident.

14
15 11. The indictment returned January 14, 2025 does not include the September 17, 2024 incident
16 or its associated valuation, which formed part of the basis for the original September 18,
17 2024 arrest and the original charging instrument.

18 12. Christina Stiefer's June 10, 2025 email to Sheila Clark states: "Judge Thompson has
19 forwarded an email to the Pretrial Release Office that you had sent regarding Ashle Penn...
20 Judge has requested that we prepare a VRA Show Cause for this violation."

21
22 13. The Affidavit for Violation of Release Agreement filed by Christina Stiefer on June 10, 2025
23 in case 24CR49043 attaches a Security Release Agreement executed under ORS 135.265 as
24 its supporting exhibit, and invokes ORS 135.290 as the contempt predicate. ORS 135.290
25 requires a conditional release under ORS 135.260. The attached exhibit is not a conditional
26 release.

27 **IX PRESERVATION OF ALL CLAIMS AND OBJECTIONS**

28 Defendant expressly preserves, without limitation and without waiver:

- 1 1. All challenges to the sufficiency of the January 14, 2025 indictment as raised in the demurrer
2 submitted April 28, 2025, including: improper joinder under ORS 135.630(2); failure to
3 state an offense under ORS 135.630(4); legal bar to the action under ORS 135.630(5); and
4 lack of definiteness under ORS 135.630(6).
- 5 2. All challenges to the validity of the January 14, 2025 grand jury proceeding, including:
6 the empanelment gap established by the Moellmer correspondence; the State's failure to
7 disclose Deputy Rambin's December 27, 2024 supplemental report before the grand jury
8 convened; the presentation of testimony that materially contradicted the sworn September
9 18, 2024 probable cause affidavit without correction; and the State's selective omission
10 of the September 17, 2024 incident after its own officer admitted the identification was
11 unreliable.
- 12 3. All challenges to the probable cause basis for the September 18, 2024 warrantless arrest,
13 including the substantial preliminary showing under *Franks v. Delaware*, 438 U.S. 154
14 (1978), arising from material misstatements in the probable cause affidavit contradicted by
15 the arresting officer's own contemporaneous and supplemental reports and by body worn
16 camera footage of the September 18, 2024 evidence pickup at Target.
- 17 4. All suppression claims as to evidence derived from the September 18, 2024 arrest as fruit
18 of a constitutionally defective warrantless arrest. *State v. Hall*, 339 Or. 7 (2005); *Wong Sun*
19 *v. United States*, 371 U.S. 471 (1963).
- 20 5. The claim for mandatory dismissal with prejudice under *State v. Roberts*, 374 Or. 821 (2026),
21 preserved in full. *Roberts* dismissal is the court's own obligation, triggered by the statutory
22 threshold. The State's objection — resting on the claim that Defendant fired two lawyers,
23 directly refuted by the State's own on-record conduct at the Sidman withdrawal hearing —
24 does not defeat that obligation. The clock has run.
- 25 6. The facial statutory voidness of the arrest warrant and contempt charge in case 25CN05790.
26 ORS 135.290 requires a conditional release predicate under ORS 135.260. The release
27
28

instrument is a security release under ORS 135.265. No valid statutory predicate exists.
The warrant and contempt charge are void on their face.

7. All rights arising from the extra-judicial communications described in Section VI, including rights under Or. Const. Art. I, § 10, Canon 2, Rule 2.9 of the Oregon Code of Judicial Conduct, and the due process clause of the Fourteenth Amendment to the United States Constitution.

8. All rights arising from the defective notice mechanism described in Section III, including the right to challenge the legal sufficiency of notice of any proceeding held after December 30, 2025.

9. All rights arising from the denial of the motion to appear remotely and the subsequent failure-to-appear notation, including any right to challenge any order or finding entered as a consequence of Defendant's absence from proceedings she was denied the means to attend.

10. The right to a speedy trial under Or. Const. Art. I, § 10 and ORS 135.747, materially impaired by the State's deliberate avoidance of a preliminary hearing, its manipulation of the grand jury process, its continuation of prosecution following its own officer's admission of a possible wrongful arrest, and its conduct of adverse proceedings against an unrepresented defendant during a judicially-declared suspension of proceedings.

X NOTICE OF FORTHCOMING MOTIONS

This Notice is the first document in a coordinated filing package that Defendant intends to submit on the papers. The package will include, at minimum:

- (1) Brady and Giglio Violation Notice with Demand for Specific Disclosures — 24CR49043;
- (2) Motion for Declaratory Determination of Pure Questions of Law — 24CR49043;
- (3) Renewed and Supplemented Demurrer, Motion to Dismiss with Prejudice, Motion to Suppress, and Motion for *Franks* Hearing — 24CR49043;

1 (4) Motion to Compel Production of Grand Jury Transcript — 24CR49043;

2 (5) Motion for Mandatory Dismissal with Prejudice under *State v. Roberts* — 24CR27775; and

3 (6) Motion to Recall Warrant — 25CN05790.
4

5 Each motion will be accompanied by a proposed order. Each argument will be grounded in
6 the record this Notice begins to establish.

7 The record does not present close questions. It presents a prosecution that has continued past
8 the point the law permits, on a charging instrument returned by a grand jury with no lawful authority
9 to convene, predicated on an arrest whose probable cause basis the arresting officer himself placed
10 in doubt in a sworn supplemental report, sustained by proceedings held in Defendant's absence
11 through a notice system corrupted by a filing-date address propagation that began the same day
12 the contempt case was initiated, and initiated in part by extra-judicial communications between the
13 assigned judge and an adverse agency conducted outside the record without notice to Defendant.

14 Defendant is prepared to demonstrate each of these propositions, document by document,
15 to this Court. She is beginning that demonstration now.
16

17 Respectfully submitted,
18
19

20 _____
21 Ashle' Antoinette Penn

22 Defendant, Pro Se

23 Dated: June 26, 2026

24
25 Address: _____

26 Phone: _____

27 Email: _____
28

CERTIFICATE OF SERVICE

I, Ashle' Antoinette Penn, certify that on June 26, 2026 I served a true and correct copy of the foregoing *Notice of Appearance Pro Se; Notice of Preservation of Record; Notice of Systematic Obstruction of Access to Proceedings; and Objection to Characterization of Defendant's Status* upon the Washington County District Attorney's Office, 150 N. First Avenue, Suite 300, Hillsboro, Oregon 97124, by the following method:

☐ Electronic Filing (eFiling)

☐ U.S. Mail, First Class

Ashle' Antoinette Penn

1
2
3
4 **IN THE CIRCUIT COURT OF THE STATE OF OREGON**
5 **FOR THE COUNTY OF WASHINGTON**

6 STATE OF OREGON,

7 Plaintiff,

8 vs.

9 ASHLE ANTOINETTE PENN

10 Defendant.

No. 25CN05790 (DA 454444)

ARREST WARRANT ORDER

11
12 The Court, having considered the affidavit of David Rambin, dated December 29, 2025,
13 and the accompanying District Attorney's Information, hereby ORDERS:

14 ~~_____~~ The State's request for an arrest warrant is GRANTED, security will be
15 set at \$ 25,000.00.

16
17 _____ The State's request for an arrest warrant is DENIED and the above-captioned
18 case is DISMISSED without prejudice.

19
20 12/31/2025 9:31:55 AM

21 

22 Circuit Court Judge, Hafez Daraee
23

Verified Correct Copy of Original 6/11/2025.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

v.

Ashle Antoinette Penn,

Defendant.

Case No. 24CR49043

**AFFIDAVIT FOR VIOLATION OF
RELEASE AGREEMENT**

() Issue Bench Warrant and
Schedule Show Cause Hearing
(xx) Schedule Show Cause Hearing

AFFIDAVIT

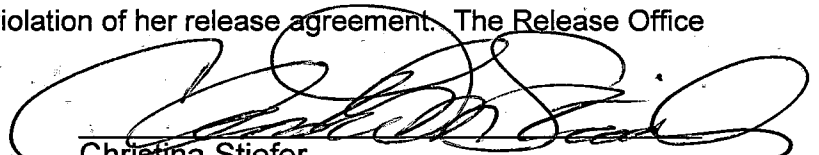
I, the undersigned, am a Supervisor for Pretrial Release in the Circuit Court of Washington County, Oregon.

The above-named defendant signed a release agreement on September 20th, 2024 which ordered the defendant to have no contact with co-defendants. Please see the attached Security Release Agreement. The Order for Release signed by Judge Elizabeth Lemoine on September 9th, 2024, identifies the co-defendant in this matter as Barry Washington. See the attached order.

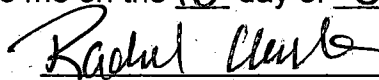
On the 10th day of June 2025, an email was received from Molly McBride, a Parole & Probation Officer with Washington County. According to Ms. McBride there has been recent contact violations between Ashle Penn and Barry Washington, her co-defendant. According to a Washington County Sheriff's Office police report #50-2025-6479, Ms. Penn was located at the same residence as Mr. Washington during a warrant apprehension that occurred on May 10th, 2025. See the attached email.

It appears the defendant is in violation of her release agreement. The Release Office recommends a Show Cause Hearing.




Christina Stiefer
Pretrial Release Supervisor

SUBSCRIBED AND SWORN to before me on the 10th day of June, 2025


Court Clerk Rachel Clark

***** ORDER *****

Based on the Affidavit of the above, it is hereby ORDERED that the defendant be and is hereby required to appear on June 23rd, 2025 so that a Show Cause Hearing may be set. at 10:30 am.

DATED: 6/10/25


Circuit Court Judge C. Colburn

SECURITY RELEASE AGREEMENT

CIRCUIT COURT, STATE OF OREGON, WASHINGTON COUNTY

STATE OF OREGON v. PENN, ASHLE ANTOINETTE Defendant

DEFENDANT ABOVE NAMED, ON OATH SAY AND AGREE:

To personally appear at all of my court dates in this case
unless otherwise allowed by the Court.

I agree to appear on: 09/20/2024 00 PM

Total Charges for Case #: 2

164.055 THEFT 1ST DEG - 1 FEL x 1

475.894 UNL POSSESS METHAMPHETAMINE - 1 MISD x 1

10% of: 2500 : \$: 250 : paid in cash at: 0900 : am/pm this date: 9-20-24 : set by [] Schedule, [] Warrant, [] Judge

WASHINGTON COUNTY CIRCUIT (HILLSBORO) 145 N.E. 2ND AVE., HILLSBORO, OR. 97124 503-846-6362

Check daily calendar for courtroom assignment, and to appear thereafter as ordered by the Court until discharged.

To submit to all orders and processes of the Court.

Not to leave Oregon without permission of the Court (for permission, contact the Court Release Office).

4(a). If initialed, I understand that I have court permission (subject to my waiver of extradition rights below) to reside in Washington State at the address on this release form. _____ (initials of Release Officer)

To keep the Court, my Attorney, and my Responsible Person advised of my correct address at all times and to maintain adequate contact with my attorney such that the attorney can contact me on short notice at all times.

6) To obey all laws and notify the Court immediately if arrested or cited for any offense (other than traffic violations).

7. You are not to have any direct or indirect contact with the victim and/or co-defendant(s) unless specifically authorized by the Court. "Victim" means the person(s) who have suffered financial, social, psychological, or physical harm as a result of the alleged crime(s).

8. To also obey the following condition(s): Initial: [Signature]

You are not to possess or consume any alcohol.

You are not to possess or consume any illegal drugs.

You are not to possess any dangerous weapons, firearms, knives, etc.

You are not to have any contact with the victim's family, co-defendant's or witness's.

You are not to go within 150 yards of the victim's residence, work, vehicle or person. Victim: TARGET

~~NO CONTACT WITH CO-DEFENDANT BARRY WASHINGTON.~~**I UNDERSTAND FULLY THAT:**

1. A willful failure to appear in Court is a separate and serious crime punishable by fine, jail or prison sentence.
2. A willful failure to appear in Court results in a waiver of my speedy trial rights on all charging instruments, including subsequently filed indictments, arising from the criminal episode which is the subject of this release agreement.
3. A willful failure to appear in Court may negate my speedy trial rights if I leave the State even if the State fails to extradite me.
4. That the Court may modify or revoke this agreement and my release and may add conditions or require security to be posted.
5. That any breach of this agreement may be punished as contempt of court and result in re-arrest.
6. I must provide an address, phone number, email or any combination of, so the court can send a reminder notice. The contact avenues can include a family, friend, or shelter's address or phone to number.
7. If posted, the state will retain a 15% service fee from the account posted, not less than \$5.00 for expenses. This applies when the 10% security amount is posted. If the full security amount is posted, no 15% service fee will be retained.
8. All security amounts will be receipted in the name of the person posting security and will be applied to any fines, fees, restitution or court-ordered financial obligation in this case or any other case the defendant or surety owes on, in this Court or any other Circuit Court in Oregon. Any refundable amount may be returned to the person who posted at the disposition of this case.
9. If I do not comply with the conditions of the release agreement, including but not limited to failure to appear in Court, the Court shall enter an order delcaring the entire security amount to be forfeited. The order or forfeiture will be mailed to you at the address you have provided in your release agreement. It is your responsibility to advise the court of any changes in address. Notifying the Post Office or the Sheriff's Office is inadequate. Notice shall be in writing to Washington County Court Pretrial Release Office, 215 SW Adams, Hillsboro, OR. 97123

Subscribed and sworn to before me and receipted this 20th of September, 2024Printed Name of Officer: B. DannerSignature of Officer: [Signature]Title: DutyAgency: WCSO

Language: _____

Interpreter: _____

SECURITY RELEASE AGREEMENT

CIRCUIT COURT, STATE OF OREGON, WASHINGTON COUNTY

STATE OF OREGON v. PENN, ASHLE ANTOINETTE Defendant

UNDERSTAND THAT IF I AM FOUND OUTSIDE THIS STATE IN VIOLATION OF THIS AGREEMENT, I HEREBY WAIVE MY RIGHT
TO CONTEST EXTRADITION BACK TO THE STATE OF OREGON.
I HAVE READ, FULLY UNDERSTAND AND VOLUNTARILY SIGNED THIS AGREEMENT.

Date: 9/20/2024, Signature of Defendant: X
Height: 504, Weight: 160, Hair: BLK, Eyes: BRO, Birth Date: 02/15/1988
Address: 2850 SW CEDAR HILLS BLVD # 234 BEAVERTON, OR 97005
Mailing Address if different:
Phone: (424) 242-3374
Your Email:
Family/Friend/Shelter Phone:
Family/Friend/Shelter Address:
Family/Friend Email:

Subscribed and sworn to before me and receipted this 20th of September, 2024Printed Name of Officer: B. DarnellSignature of Officer: [Signature]Title: DeputyAgency: WCSO

Language: _____

Interpreter: _____

Verified Correct Copy of Original 6/11/2025.
Verified Correct Copy of Original 9/26/2024.

Washington County Jail - OR 9/20/2024 09:00 AM

Resident Transaction Receipt

Transaction 960748

Receipt:

Resident

Name PENN, ASHLE ANTOINETTE

JID Booking ID

7822561 2406298

Pod: Cell:

POD-4 013

Transaction

Date/Time	Accounting Event	Amount
9/20/2024 8:55 AM	Pay Bail Check	\$250.00

Description

24CR45043

Accounts

Account	Current Balance
Trust	\$5.52

Signature

Date

ied Correct Copy of Original 9/26/2024._

WASHINGTON COUNTY
JAIL DIVISION/INMATE TRUST ACC

55743

Date: 09/20/2024
Amount: 250.00
Payee: WASHINGTON COUNTY CIRCUIT COURT
Memo: 24CR49043

Inmate ID: 7822501
Inmate Name: PENN, ASHLE

OFFICIAL RECEIPT
OREGON JUDICIAL DEPARTMENT
Payments Accepted Online
www.courts.oregon.gov Select *OJD Courts E-Pay*

PAID BY
PENN, ASHLE ANTOINETTE
7101 NW AUTUMN CREEK WAY APT L304
BEAVERTON, OR 97006

Receipt No.
2024-631407
Transaction Date
09/26/2024

Description	Amount Paid
On Behalf Of PENN, ASHLE ANTOINETTE 24CR49043 State of Oregon vs ASHLE ANTOINETTE PENN Bond Account	
Security Release	250.00
SUBTOTAL	250.00
PAYMENT TOTAL	250.00
Check (Ref #55743) Tendered	250.00
Total Tendered	250.00
Change	0.00
09/26/2024 03:23 PM	Cashier Station WSHW334
	Audit 282108423

OFFICIAL RECEIPT

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

Verified Correct Copy of Original 6/11/2025.
Verified Correct Copy of Original 9/19/2024.

ORDER on ☒ Release Hearing
☐ Release Status Check
☐ Modification of Release
☐ Violation of Release

STATE OF OREGON)
Plaintiff,)
vs)
Ashlee Antoinette Penn.)
Defendant.)

Case No. 24CR49043
Deputy DA Hill
Defense Atty Garcia
Interpreter _____
Hearing Date 9/19/24

This matter having come before the Court with:

☒ Defendant present ☒ In Custody
☐ Defendant not present

it is hereby ORDERED by the Court that:

Security Release: ☒ Same / ☒ New Security Amount: \$ 2,500 (Post 10%)
_____ Conditional Release, with special conditions as listed below
_____ NO FORCED RELEASE

Special Conditions:

- _____ 1. Responsible person, approved by Court Release Office: _____
- _____ 2. Reside with responsible person or: _____
- _____ 3. Obey all house rules
- _____ 4. Curfew from _____ PM to _____ AM
- _____ 5. House arrest
- _____ 6. Not to leave the residence unless with the responsible person
- _____ 7. Not to leave residence unless with person(s) approved by Court Release Office
- _____ 8. May leave residence for school, work, counseling, legal, medical, other _____
- ☒ 9. Not to possess or consume (a) alcohol, (b) illegal drugs, (c) dangerous or deadly weapons, (d) other _____
- ☒ 10. Not to have any contact with (a) victim, (b) family of victim, (c) witnesses Target
- _____ 11. Pretrial Electronic Monitoring through Vigilnet: (a) GPS, (b) alcohol, (c) both
- _____ 12. Report to PO in person within 24 hours of release from custody
- _____ 13. Report address to the Court in writing upon release from custody
- _____ 14. Sign and abide by the "no contact with minors" addendum
- _____ 15. May not operate a motor vehicle without valid license and insurance
- _____ 16. Not possess ID, checks or credit cards that do not belong to defendant
- ☒ 17. Additional conditions ordered by the Court: No contact w/ Co-Defendant Barry Washington.

Next court date, time & courtroom: _____

Dated 9/19/24

Elizabeth Lemer
Judge's Signature (Please print or stamp name below)

ERC

From: Molly McBride
To: Christina Stiefer; Sheila Clark
Subject: RE: Ashle Penn, 24CR49043
Date: Tuesday, June 10, 2025 1:48:21 PM
Attachments: image003.png

WARNING: This email is from outside of the Oregon Judicial Department. If links or files in this email are unexpected, even if from an email address you trust, please call the sender on the phone and verify them before you click.

Hi Chris,

Here is the summary of the most recent contact violations between Mr. Washington and Ms. Penn:

I read Washington County Sheriff Office police report #50-2025-6479, written by Deputy Hayden King, summarizing a warrant apprehension that occurred on 5/10/2025 involving Mr. Washington. Deputy King responded to a domestic disturbance at an apartment and was advised that the male involved at this location has an active felony warrant, prior to entering the apartment. When Deputy King arrived, a female answered the door, later identified as Ashle Penn. Ms. Penn stated she did not want to answer any questions, the deputies stated they needed to talk to Mr. Washington, and she said she would get him. After a few minutes, the deputies knocked again and Ms. Penn told them she will tell Mr. Washington to speed up, a few more minutes went by, and he did not come to the door. The deputies then knocked again and told Ms. Penn they need to enter the residence and motioned for her to take the child in the apartment to the other side of the room. The deputies called out for Mr. Washington, and he did not reply. While searching a bedroom near the back of the house, the deputies opened a closet and found Mr. Washington sitting inside. They asked him to come out multiple times and he did not reply. Due to Mr. Washington having a large coat on which could conceal weapons, and past incidents and cautions related to Mr. Washington possessing weapons, the deputies used the arc function of the taser. Mr. Washington then stood up and began to exit the closet, he was placed in handcuffs and placed in the patrol vehicle. The warrant was confirmed, and Mr. Washington was transported to Washington County Jail, booked, and lodged.

I reviewed the jail calls from 5/10/2025 through 5/19/2025 made by Mr. Washington. On 5/10/2025 he made multiple calls to a person that sounded like Ms. Penn and had a phone number associated with Ms. Penn in law enforcement databases. On 5/10/2025 Mr. Washington and Ms. Penn argued and I heard her say "I can't believe you were doing what you were doing to me while I was asleep" and Mr. Washington replies saying "you've been choked out before and all kind of sh*t" and the conversation went on to talk about paying for Mr. Washington's calls. There were calls Mr. Washington had with this number (424-242-3374) again on 5/11/2025 and 5/12/2025. I also listened to calls Mr. Washington had with another number (503-828-1688) on 5/14/2025, 5/15/2025, 5/16/2025, 5/17/2025, and 5/18/2025, having multiple calls per day. These calls were with a female voice that sounds like Ms. Penn, and Mr. Washington talked to them about their son and their apartment, as well as discussing his supervision violations.

Thanks,
Molly

From: Christina Stiefer <Christina.STIEFER@ojd.state.or.us>
Sent: Tuesday, June 10, 2025 1:39 PM
To: Sheila Clark <Sheila_Clark@washingtoncountyor.gov>
Cc: Molly McBride <Molly_McBride@washingtoncountyor.gov>
Subject: RE: Ashle Penn, 24CR49043

Thank you Sheila. I appreciate your help.

Chris Stiefer
Pretrial/ Verification/ Set Aside/ Traffic Supervisor
Washington County Circuit Court
503-846-8888 ext. 70587

From: Sheila Clark <Sheila_Clark@washingtoncountyor.gov>
Sent: Tuesday, June 10, 2025 1:38 PM
To: Christina Stiefer <Christina.STIEFER@ojd.state.or.us>
Cc: Molly McBride <Molly_McBride@washingtoncountyor.gov>
Subject: RE: Ashle Penn, 24CR49043

WARNING: This email is from outside of the Oregon Judicial Department. If links or files in this email are unexpected, even if from an email address you trust, please call the sender on the phone and verify them before you click.

Hello. I will forward this to PO Molly Bineham as she has direct information on this and she will respond. Thank you for the information I appreciate it.

(This email may be subject to retention in compliance with Oregon Public Records Laws.)

Thanks,

Sheila Clark
P&P Services Supervisor

Desk: (503) 846-2946
Fax: (503) 846-4509
Main: (503) 846-3400
Email: Sheila_Clark@washingtoncountyor.gov

150 N. First Ave. Suite 200 MS46
Hillsboro, OR 97124

<https://www.washingtoncountyor.gov/>



WASHINGTON COUNTY
OREGON

"Promote behavior change to enhance community safety."

R.E.A.C.H.

Respect – Diversity, Dignity, Inclusion

Equity – Adaptable, Balanced, Just

Accountability – Mine, Yours, Others

Collaboration – Relationships, Partnerships, Commitment

Heart – Courage, Hope, Compassion

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Save paper, toner and energy. Avoid printing emails whenever possible!

From: Christina Stiefer <Christina.STIEFER@ojd.state.or.us>

Sent: Tuesday, June 10, 2025 12:20 PM

To: Sheila Clark <Sheila_Clark@washingtoncountyor.gov>

Subject: Ashle Penn, 24CR49043

Good afternoon,

Judge Thompson has forwarded an email to the Pretrial Release Office that you had sent regarding Ashle Penn. I understand that you have knowledge that Ms. Penn has been having contact with Mr. Barry Washington who is a co-defendant in her criminal case # 24CR49043. Her release conditions are to not have any contact with Mr. Washington. Would you be willing to send our office an email sharing with us your knowledge of the defendant's contact with her co-defendant? Judge has requested that we prepare a VRA Show Cause for this violation and I will need a little more information to support the affidavit.

I appreciate your assistance. Please let me know if you have any questions.

Christina Stiefer
Pretrial/ Verification/ Set Aside/ Traffic Supervisor
Washington County Circuit Court
215 SW Adams Street
Hillsboro, OR 97123
503-846-8888 ext. 70587

INFO: Washington County email address has changed from @co.washington.or.us to @washingtoncountyor.gov.
Please update my contact information.

INFO: Washington County email address has changed from @co.washington.or.us to @washingtoncountyor.gov.
Please update my contact information.